

SC126806 SC126806

County: los-angeles

Division: Civil Law and Motion

Department: I

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This is an application to describe what will be tried in October. That is not an unreasonable request; all parties need to know. The court at the last hearing suggested that this phase would deal with who owns the unit as opposed to the various claims of sexual misconduct or sexual assault. As the court explained, resolving those issues will eliminate many parties from the remainder of the case, thereby (hopefully) simplifying the procedural posture. It also seems to be a more discrete issue in some senses, and Doe has claimed that, for medical reasons, she will not be able to prosecute her claims of assault by October. What the court will do, given that it is supposedly dark today for medical reasons, is to have the parties meet and confer to seek to arrive at a stipulation as to what will be tried. If there are two “phases” to the October trial, that can be proposed as well. The court understands that defendants have already submitted their proposal. Plaintiff will have until Thursday at noon to propose an alternative. The parties will then meet and confer—not just by letter—to try and resolve the question and the court will reconvene this hearing on August 24.

Again, for the parties’ guidance, if the issue relates to who owns the property or rights in the property, the court intends to deal with in in October. If instead it deals with allegations of sexual assault, then the court plans to deal with that in the later part of the case.

The court is aware of defendants’ position that the five year period will run shortly in the original case and they have not waived the five year statute, although they have waived their European Beverage rights (relating to the right to have a single jury decide a case). The court is aware that plaintiff Jane Doe has dismissed her claims of sexual assault and the like in the original case,

but not the 2024 case, and she is of the view that the 2024 case still has all of those issues in it and that those issues are not barred by the five year statute. Doe has elected not to attempt to withdraw her dismissal in the original case. Defendants have not conceded Doe's point. The court has issued no ruling on that question, and does not do so now.

The court is also aware of defendants' suggestion that the court deem the case complex. The court is inclined to agree such that the complex rules will apply. The case, however, will remain in this department.

Finally, there is an issue as to whether certain issues will be tried as to ATW's complaint.

Defendants suggest that no one was ever served in that complaint. The court will inquire if that is true. If it is true, the court will inquire further. It would seem that the time to serve defendants has long since run. The court will address that issue on August 24, 2026, as well, but if there are unserved defendants, the court would want to know from plaintiff why it is that they ought not be dismissed.

As for today, the court does not anticipate hearing argument. So the only actual order is that the ex parte is CONTINUED to August 24, 2026, at 9:00 am.